

25STCV36974 25STCV36974

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-18

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Case Number: 25STCV36974 Hearing Date: August 18, 2026 Dept: 732

Ryan Hamilton, et al. v. Volodymyr Artemenko, et al.

Tuesday, August 18, 2026

CASE NUMBER: 25STCV36974

UNOPPOSED

Plaintiffs Ryan Hamilton,

Addam Bramich, Shiver Film, LLC, and Zipline Films, LLC's

Application to Admit R. Gale Porter Jr. as Counsel Pro Hac Vice

Facts:

This is an action for breach of contract and fraud. The First Amended Complaint ("FAC") alleges as follows. Plaintiffs Ryan Hamilton, Addam Bramich, Shiver Film, LLC, and Zipline Films, LLC ("Plaintiffs") entered into an agreement with Defendant Volodymyr Artemenko and Top Film Distribution Corp. ("Defendants") whereby the latter would provide financing for a feature film project owned by Plaintiffs in exchange for a set return on investment plus a share of the profits. (FAC ¶¶ 15–22.) While negotiating the agreement, Artemenko made representations concerning his finances and available funding sources to the effect that he would be able to meet his film financing obligations without resort to outside sources. (Complaint ¶ 17.) These representations were false, as Artemenko's prior film company had gone bankrupt, he was personally liable for the debts thereof, and Defendants were not financially capable of complying

with the agreement except by resort to third parties, whose funds Defendants in any event largely channeled to other obligations. (FAC ¶¶ 17–33.) Defendants eventually refused to comply with their funding obligations unless Plaintiffs surrendered their rights to the film. (Complaint ¶ 34.)

Procedural History: Plaintiffs

filed the Complaint on December 18, 2025, and filed the FAC on April 22, 2026, alleging five causes of action:

1.

Breach of Private Written Contract

2.

Fraud

3.

Intentional Interference with Economic Relations

4.

Negligent Interference with Economic Relations

5.

Intentional Interference with Contract

Plaintiffs

filed the present pro hac vice application on May 13, 2026.

Analysis

I.

PRO

HAC VICE

“A person who is not a member of the State Bar of California but who is a member in good standing of and eligible to practice before the bar of any United States court or the highest court in any state . . . and who has been retained to appear in a particular cause pending in a court of this state, may in the discretion of such court be permitted upon written application to appear as counsel pro hac vice, provided that an active member of the State Bar of California is associated as attorney of record.” (Cal. Rules of Court

("CRC") Rule 9.40(a).) An applicant may not be a resident of the State of California, regularly employed in the State of California, or regularly engaged in substantial business, professional, or other activities in the State of California. (CRC 9.40(a)(1–3.)

"A person desiring to appear as counsel pro hac vice in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar of California at its San Francisco office." (CRC 9.40(c)(1).) Notice must be given sixteen days before the hearing.

"The application must state; (1) The applicant's residence and office address; (2) The courts to which the applicant has been admitted to practice and the dates of admission; (3) That the applicant is a member in good standing in those courts; (4) That the applicant is not currently suspended or disbarred in any court; (5) The title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6) The name, address, and telephone number of the active member of the State Bar of California who is attorney of record." (CRC 9.40(d)(1–6.) Additionally, a \$50 must be paid to the California Bar. (CRC 9.40(e).)

Plaintiffs Ryan Hamilton, Addam Bramich, Shiver Film, LLC, and Zipline Films, LLC ("Plaintiffs") bring the present application to admit R. Gale Porter Jr. as counsel pro hac vice. The application contains a declaration of Porter, who states that he is a resident of Florida with his office in Florida, and is a member in good standing of the Florida Bar, and not suspended or disbarred in any court. (Porter Decl. ¶¶ 1–7.) Porter is not a resident of California and has not previously sought pro hac vice admission in California courts. (Porter Decl. ¶¶ 8–9.)

This court previously continued hearing on the present application, noting that it lacked proof of service upon the State Bar at its San Francisco office, as required by CRC Rule 9.40, subd. (c)(1), or indication that the requisite fee has been paid. (CRC Rule 9.40, subd. (e); see California State Bar, "Pro Hac Vice," <<https://www.calbar.ca.gov/admissions/special-admissions/pro-hac-vice>>, as of June 2, 2026.) The court continued the matter again on June 16, 2026 and July 20, 2026. On July 20, 2026, Plaintiffs

filed the required proof of service, with attached evidence that the State Bar fee had been paid.

The pro hac vice application is GRANTED.

Superior Court of California

County of Los Angeles

Department 732

RYAN

HAMILTON, et al.,

Plaintiffs

v.

VOLODYMYR ARTEMENKO, et al.,

Defendants.

Case No.:

25STCV26439

Hearing Date: July 20, 2026

[TENTATIVE] RULING RE:

Plaintiffs

Ryan Hamilton, Addam Bramich, Shiver Film, LLC, and Zipline Films, LLC's
Application to Admit R. Gale Porter Jr. as Counsel Pro Hac Vice

Plaintiffs

Ryan Hamilton, Addam Bramich, Shiver Film, LLC, and Zipline Films, LLC's
Application to Admit R. Gale Porter Jr. as Counsel Pro Hac Vice is GRANTED.

Plaintiffs to give notice.

Dated: August 17, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court